

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
ERIC GUSEK,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER JOHNATHAN
KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE
OFFICER PETER NABOKA, BADGE NUMBER
UNKNOWN, AND SERGEANT ABDIEL CRUZ,
BADGE NUMBER UNKNOWN,

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates Queens
County as the place of trial.

Basis of venue is place
of occurrence.

SUMMONS

Plaintiff resides at
35-17 30th Street
Astoria, New York 11106

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
May 9, 2013

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
ERIC GUSEK
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER JOHNATHAN
KUPFERSCHMIDT, BADGE NUMBER 2543,
POLICE OFFICER PETER NABOKA, BADGE
NUMBER UNKNOWN,
SERGEANT ABDIEL CRUZ, BADGE
NUMBER UNKNOWN, c/o
114th Precinct
34-16 Astoria Boulevard
Astoria, New York 11103

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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ERIC GUSEK,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER JOHNATHAN
KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE
OFFICER PETER NABOKA, BADGE NUMBER
UNKNOWN, AND SERGEANT ABDIEL CRUZ,
BADGE NUMBER UNKNOWN,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff ERIC GUSEK by and through his attorneys, TRACIE A. SUNDACK &
ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER
JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER
NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE
NUMBER UNKNOWN, respectfully alleges as follows:

1. That Plaintiff ERIC GUSEK is a hispanic male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.
2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
3. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.
4. That at all times hereinafter mentioned, Defendant POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, was employed by Defendant CITY OF NEW YORK as a police officer.
5. That at all times hereinafter mentioned, Defendant POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, acted within the scope of his employment for Defendant CITY OF NEW YORK.

6. That at all times hereinafter mentioned, Defendant POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Queens, City and State of New York, and under the authority of his office as a police officer for said county, city and state.

7. That at all times hereinafter mentioned, Defendant POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

8. That at all times hereinafter mentioned, Defendant POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned, Defendant POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Queens, City and State of New York, and under the authority of his office as a police officer for said county, city and state.

10. That at all times hereinafter mentioned, Defendant SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

11. That at all times hereinafter mentioned, Defendant SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

12. That at all times hereinafter mentioned, Defendant SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Queens, City and State of New York, and under the authority of his office as a police officer for said county, city and state.

13. That on February 27, 2012, at approximately 3:30 p.m., Plaintiff ERIC GUSEK was lawfully present near the intersection of 23rd Street and Broadway, in the County of Queens, City and State of New York.

14. That, at the aforementioned time and place, Plaintiff ERIC GUSEK was suddenly

accosted by members of the New York City Police Department including, but not limited to, Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN.

15. That, at the aforementioned time and place, Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, handcuffed Plaintiff ERIC GUSEK and placed him under arrest for criminal possession of a controlled substance, despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

16. That Plaintiff ERIC GUSEK was then transported to the 114th Precinct (34-16 Astoria Boulevard, Astoria, New York 11103) of the New York City Police Department, and then to Queens Central Booking where his arrest was processed, thereafter Plaintiff was incarcerated in Vernon C. Bain Center (1 Halleck Street, Bronx, New York 10474).

17. That Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, initiated criminal proceedings against Plaintiff ERIC GUSEK despite Defendants' knowledge that they lacked probable cause to do so.

18. That Plaintiff ERIC GUSEK was held, detained and imprisoned from February 27, 2012, to April 6, 2012, by Defendants before being released following the posting of bail.

19. That on or about May 17, 2012, by Order of the Honorable M. O'Donoghue, J.S.C., all criminal charges against Plaintiff ERIC GUSEK were dismissed.

20. As a result of the foregoing, Plaintiff ERIC GUSEK sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST
UNDER 42 U.S.C. § 1983

21. Plaintiff ERIC GUSEK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

22. That at the aforementioned time and place, Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, placed Plaintiff ERIC GUSEK under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

23 That Plaintiff ERIC GUSEK had not committed any offense and Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

24. That Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, were aware that probable cause did not exist for the arrest and detention of Plaintiff ERIC GUSEK and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff ERIC GUSEK and such actions were committed in bad faith.

25. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff ERIC GUSEK and such actions were committed in bad faith.

26. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543,

POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff ERIC GUSEK was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1983, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

27. As a further result of the above-described acts, Plaintiff ERIC GUSEK was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE IMPRISONMENT
UNDER 42 U.S.C. § 1983

28. Plaintiff ERIC GUSEK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

29. That Plaintiff ERIC GUSEK was falsely imprisoned from February 27, 2012, to April 6, 2012, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

30. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, intended to confine Plaintiff ERIC GUSEK, and Plaintiff ERIC GUSEK was conscious of the confinement, and Plaintiff ERIC GUSEK did not consent to the confinement.

31. That Defendants' words, actions, and the charges laid by them were willful, malicious,

false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff ERIC GUSEK and damaging Plaintiff ERIC GUSEK in his reputation and depriving him of his liberty.

32. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff ERIC GUSEK suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER 42 U.S.C. § 1983

33. Plaintiff ERIC GUSEK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

34. That Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, misrepresented and falsified evidence before the District Attorney.

35. That Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, did not make a complete and full statement of facts to the District Attorney.

36. That Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, withheld exculpatory evidence from the District Attorney.

37. That Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and

SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, were directly and actively involved in the initiation of criminal proceedings against Plaintiff ERIC GUSEK.

38. That Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, lacked probable cause to initiate criminal proceedings against Plaintiff ERIC GUSEK.

39. That Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, acted with malice in initiating criminal proceedings against Plaintiff ERIC GUSEK.

40. That Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, were directly and actively involved in the continuation of criminal proceedings against Plaintiff ERIC GUSEK.

41. That Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, lacked probable cause to continue criminal proceedings against Plaintiff ERIC GUSEK.

42. That Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, acted with malice in continuing criminal proceedings Plaintiff ERIC GUSEK.

43. That Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, misrepresented and falsified evidence throughout all phases of the criminal proceeding.

44. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE

OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, the criminal proceedings were terminated in Plaintiff ERIC GUSEK's favor.

AS AND FOR A FOURTH CAUSE OF ACTION FOR MUNICIPAL LIABILITY

45. Plaintiff ERIC GUSEK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

46. That Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

47. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

48. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff ERIC GUSEK.

49. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff ERIC GUSEK as alleged herein.

50. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff ERIC GUSEK as alleged herein.

51. That Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and

SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, while acting under the color of state law, was directly and actively involved in violating Plaintiff ERIC GUSEK's constitutional rights.

52. That all of the foregoing acts by Defendant CITY OF NEW YORK, its agents, servants and/or employees including Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, deprived Plaintiff ERIC GUSEK of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. To be free from unwarranted and malicious criminal prosecution;
- E. To be free from malicious abuse of process;
- F. To receive equal protection under the law.

AS AND FOR A FIFTH CAUSE OF ACTION FOR FAILURE TO INTERVENE

53. Plaintiff ERIC GUSEK repeats, reiterates and realleges each and every allegation contained in this complaint and further alleges:

54. That each and every individual Defendant had an affirmative duty to intervene on Plaintiff ERIC GUSEK's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

55. As a result of the aforementioned conduct of Defendants POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543, POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, Plaintiff ERIC GUSEK's constitutional rights were violated and he sustained injuries.

WHEREFORE Plaintiff ERIC GUSEK demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER JOHNATHAN KUPFERSCHMIDT, BADGE NUMBER 2543,

POLICE OFFICER PETER NABOKA, BADGE NUMBER UNKNOWN, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
May 9, 2013



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
ERIC GUSEK
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

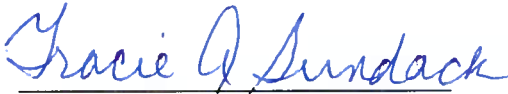
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York,
state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents
thereof; the same is true to my own knowledge, except for the matters therein alleged to be on
information and belief, and as to those matters I believe them to be true. The reason this
Verification is made by me and not by the Plaintiff is that the Plaintiff resides outside the County
where your affirmant maintains her office. The grounds of my belief as to all matters not stated
upon my own knowledge are as follows: files maintained by my office and conversations with the
Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
May 9, 2013



TRACIE A. SUNDACK